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File No.: EXP202210165

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 05/09/2022, a Complaint Report was received by this Agency, sent by the GUARDIA CIVIL - POST OF ***LOCALITY.1 (hereinafter, the complainant party) for a possible breach of the provisions of personal data protection regulations by EXPLOTACIONES HOSTELERAS Y DE OCIO ALBACETEÑAS, S.L. with NIF B02758423 (hereinafter, the complained party).

In the forwarding letter, the following is indicated:

"The Agents with TIPS (...) went to the establishment Club ***CLUB.1 located at ***ADDRESS.1 in the ***POLYGON.1 area due to a reported breach of the hours stipulated by Law 7/2021 (...) and it was observed that there are three surveillance cameras installed at an approximate height of 5 meters. One of them has its area of influence over the terrace at the entrance of the establishment, and the other two have their area of influence on the side of the establishment, which is an open area accessible to the warehouses located on that side of the street. The mentioned street does not have a door or access control, making it publicly accessible for citizens wishing to pass through said route. It is reported that on 12-06-2022, an administrative complaint was filed by this Unit, being file (...) sent to the Spanish Agency for Data Protection, being file (...) which informed this Unit that the complained party had been informed of the requirements imposed by data protection regulations. It is noted that two cameras remain in the same location where they were and have neither been modified nor uninstalled, having their area of influence in a public-use street."

SECOND: The complained party was sent a letter indicating the obligations it had regarding data protection and video surveillance, resulting in notification on 18/07/2022, following the submission of a Report from the GUARDIA CIVIL - POST OF GUADALAJARA for the same facts.

THIRD: In compliance with the provision of Article 14.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the agreement to initiate the present sanctioning procedure was notified to the complained party by electronic means.

The certificate issued by the Support Service of the Electronic Notification Service and the Authorized Electronic Address of the National Mint and Stamp Factory (hereinafter, FNMT), which is in the file, certifies that the AEPD made the notification available to the recipient on 13/12/2022 and that on 24/12/2022, there was an automatic rejection of the notification. However, on 14/02/2022, it was notified via postal mail, as stated in the notice issued by Correos.

FOURTH: After the deadline granted for the submission of allegations, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: A Complaint Report is sent by the GUARDIA CIVIL - POST OF GUADALAJARA for the installation of 3 surveillance cameras outside the establishment "Club ***CLUB.1", located at ***ADDRESS, ***POLYGON.1 (***LOCALITY.1). Two of the devices are oriented towards the public

road without the necessary administrative authorization.

SECOND: The entity identified as responsible for the video surveillance system is EXPLOTACIONES HOSTELERAS Y DE OCIO ALBACETEÑAS, S.L. with NIF B02758423.

THIRD: The Spanish Agency for Data Protection has notified the complained party of the agreement to open the present sanctioning procedure, but it has not submitted allegations or evidence contradicting the reported facts.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), it is competent to

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to initiate and resolve this procedure the Director of the Spanish Agency for Data Protection.

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

III

Data minimization

The processing of personal data is subject to the principles outlined in Article 5 of the GDPR. In this regard, paragraph c) of the aforementioned provision includes the principle of "data minimization" under which "personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities. However, the capture of images from public roads is only permitted to the extent that it is essential for the aforementioned purpose.

Under no circumstances shall the use of surveillance practices be allowed beyond the area subject to the installation and, in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby who freely transit the area. In this case, the reported party has installed 3 video surveillance cameras outside the establishment "Club Michigan," located at street ***ADDRESS.1, ***INDUSTRIAL AREA.1 (***TOWN.1); two of which are oriented towards the public road without the necessary administrative authorization.

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For its part, the reported party has not presented allegations or evidence that contradict the reported facts within the given timeframe.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the reported party, for violation of Article 5.1.c) of the GDPR.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

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5.- The images may be retained for a maximum period of one month, except in those cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours. A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security

company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Classification of the infringement of Article 5.1.c) of the GDPR

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The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of the infringement classified in Article 83.5.a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9; (...)

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679; (...)"

VI

Sanction for the infringement of Article 5.1.c) of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified time frame - Article 58.2 d).

In this case, it is deemed appropriate to sanction the respondent for the infringement of Article 5.1.c) of the GDPR for which they are responsible, by imposing an administrative fine that must be individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraphs 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, due regard shall be given to:

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- a) the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;
 - b) the intentionality or negligence in the infringement;
 - c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
 - d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;
 - e) any previous infringements committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, particularly whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for the imposition of a fine of €500 (five hundred euros).

VII

Imposition of measures

Under the provisions of Article 58.2 d) of the GDPR, the reported party is ordered to, within ten working days from the date on which the resolution in which this is agreed is notified to them, prove:

- That they have proceeded to remove the cameras that result in excessive capture, or prove the regularization of the same in accordance with current regulations.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE

on EXPLOTACIONES HOSTELERAS Y DE OCIO ALBACETEÑAS, S.L., with NIF B02758423, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of €500 (five hundred euros).

SECOND: TO ORDER EXPLOTACIONES HOSTELERAS Y DE OCIO ALBACETEÑAS, S.L., with NIF B02758423 to, within ten working days from the notification of the resolution of this sanctioning procedure, prove before this agency:

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Having proceeded to the removal of the cameras that result in excessive capture, or certify the regularization of the same in accordance with current regulations.

THIRD: NOTIFY this resolution to EXPLOTACIONES HOSTELERAS Y DE OCIO ALBACETEÑAS, S.L., with NIF B02758423.

FOURTH: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. 938-181022

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